

USER REFERRAL AGREEMENT

This User Referral Agreement (“the **Agreement**”) is entered into as of 2026-04-24, 2025 (the “**Effective Date**”), by and between **Kashu, Inc.**, a Wyoming Corporation with its principal place of business at 1603 Capitol Ave Ste 415 Cheyenne, WY 82001 (the “**Company**”) and Vidalyfe LLC DBA SourcifyLending with its principal place of business at 3826 sw 79th ave miami fl 33155 (the “**Referral Partner**”). The Company and the Referral Partner are collectively referred to as the “**Parties**” and individually as a “**Party**.”

RECITALS:

WHEREAS, the Company provides a financial technology platform through which users may load funds into a Kashu wallet using available credit from eligible credit cards and request disbursements to a verified bank account on file. Access to services is subject to verification, compliance review, risk monitoring, and program limits. Services are provided on an “as is” and “as available” basis. (the “**Services**”);

WHEREAS, the Referral Partner engages in marketing, promotion, and referral activities to introduce prospective users to Kashu’s platform, and may consist of individuals or entities seeking to generate revenue through such referrals, regardless of prior experience in credit advisory, financing, or related services;

WHEREAS, the Company would like to engage the Referral Partner to solicit and refer its business users to adopt the Services;

NOW, THEREFORE, in consideration of the mutual promises and covenants contained herein, and for other good and valuable consideration, the sufficiency and receipt of which are hereby acknowledged, the Parties agree as follow:

1. REFERRAL OF BUSINESS USERS

1.1. The Referral Partner agrees to identify, solicit and refer business users (the “**Users**”) who express interest in the Services. The Referral Partner shall use its best efforts to promote the Services to potential Users and provide accurate, relevant, and timely information about the Company’s offerings. All referrals shall be conducted in a professional manner, ensuring that Users are fully informed of the nature and scope of the Services before initiating any engagement with the Company.

1.2. A User shall be considered successfully referred by the Referral Partner when the Company receives full payment of the fees for the Services provided to the User (the “**Referred User**”). Only upon such payment shall the Referral Partner become eligible to receive the applicable commission associated with the Referred User under this Agreement.

1.3. The Company reserves the sole right to conduct its own due diligence and evaluation of each User referred by the Referral Partner. This includes, but is not limited to, assessing the User’s qualifications, financial standing, creditworthiness, and compliance with applicable laws.

1.4. The Company shall have absolute discretion to determine whether to extend its Services to a referred User. Referral of a User by the Referral Partner does not obligate the Company to provide Services or enter into any agreement with the User. The Referral Partner acknowledges that the referral of a User does not guarantee that the User will qualify for or receive the Company’s Services. The Company’s decision-making process is independent and based on its internal criteria and policies. The Referral Partner agrees that the Company shall not be liable to the Referral Partner for any rejection, delay, or failure to offer Services to a User, regardless of the reason for such decision.

2. USER REQUIREMENTS

2.1. The Referral Partner agrees to refer only those Users who meet the following requirements:

- (a) **Business Purpose:** The User must be seeking services primarily for business, commercial, or agricultural purposes, and not for personal, family, or household purposes.
- (b) **Business Credit Cards:** For business credit cards, the User must confirm that the credit card is used exclusively for business, commercial, or agricultural purposes.
- (c) **Business Relationship:** The Referral Partner and the User must have an established business relationship, demonstrating that the User has actively sought financial assistance or advisory services from the Referral Partner.
- (d) **OFAC Compliance:** The User must not be listed on the Specially Designated Nationals (SDN) List or any other sanctions list maintained by the U.S. Department of the Treasury's Office of Foreign Assets Control (OFAC).
- (e) **Anti-Money Laundering (AML) Compliance:**
 - (i) The Referral Partner must ensure that referred users are informed of the Company's AML requirements, including the need to provide valid identification, proof of business activity, and transactional transparency.
 - (ii) The Referral Partner shall refer only Users for whom there is no reason to suspect involvement in illegal activities, including money laundering or financial fraud.
 - (iii) The Company reserves the right to conduct its own AML due diligence for all referred User and may decline Services if concerns arise regarding compliance with anti-money laundering laws or financial fraud.
 - (iv) The Referral Partner agrees to cooperate with the Company, upon request, to verify any information related to referred Users to support the Company's AML efforts.

3. REFERRAL PROCESS

3.1. The Company shall provide the Referral Partner with a unique link to the onboarding process (the "**Onboarding Link**"), which will be hosted on the Company's platform. The Referral Partner is authorized to use the Onboarding Link to facilitate the referral of potential Users to the Company's Services.

3.2. The Referral Partner may display and share the Onboarding Link through its communication channels, including but not limited to websites, email campaigns, and social media platforms (collectively, the "**Referral Platform**"). The Referral Partner agrees to maintain the Onboarding Link in an accessible and prominent location as reasonably requested by the Company.

3.3. When a User uses the Onboarding Link to access the Company's platform, they will be directed to complete the onboarding process and submit relevant information to evaluate their eligibility for the Services.

3.4. The Referral Partner shall:

- (a) ensure that the Onboarding Link is used solely for lawful and legitimate purposes.
- (b) not alter, replicate, or misuse the Onboarding Link in any manner that deviates from its intended purpose.
- (c) not impose additional fees or charges on Users for the use of the Onboarding Link or for accessing the Company's platform.

3.5. The Referral Partner shall ensure that the content of its Referral Platforms where the Onboarding Link is placed adheres to the following standards:

- (a) The content must comply with all applicable local, state, and federal laws and regulations,

including anti-spam and data privacy laws.

- (b) The Referral Platforms must not include or link to any content that is defamatory, obscene, harassing, hateful, or otherwise inappropriate.
- (c) The Referral Partner shall not misrepresent the nature of the Company's Services or make false or misleading claims regarding the Company.
- (d) The Referral Platforms must not infringe upon any intellectual property rights, including copyrights, trademarks, or patents, of the Company or any third party.

The Company reserves the right to review and approve the content of the Referral Platforms before the Onboarding Link is placed.

3.6. The Company reserves the right to revoke or disable the Onboarding Link if the Referral Partner violates any terms of this Agreement or engages in practices deemed unethical, fraudulent, or harmful to the Company's reputation.

3.7. The Company may monitor the Referral Partner's use of the Onboarding Link and its associated communication platforms to ensure compliance with the terms of this Agreement. Non-compliance may result in immediate termination of referral rights and forfeiture of any unpaid fee.

3.8. The Referral Partner represents and warrants that it will comply with all applicable local, state, and federal laws and regulations governing its marketing and referral activities under this Agreement, including but not limited to data privacy regulations, Telemarketing Sales Rule (TSR) and the Telephone Consumer Protection Act (TCPA) and other anti-spam laws.

3.9. The Referral Partner shall inform each User that by clicking on the Onboarding Link and completing the onboarding process, the User is submitting their information directly to the Company. The Referral Partner does not collect, process, or have access to any information provided by the User through the Onboarding Link or the onboarding form. The Company is solely responsible for handling and processing the User's information in accordance with its privacy policy and applicable data protection laws.

4. USER ENGAGEMENT STANDARDS

4.1. The Referral Partner shall engage in referral activities solely by directing potential Users to the Company's designated Onboarding Link. Referral activities must ensure that Users independently initiate contact with the Company by completing the onboarding process accessible through the Onboarding Link, requesting communication, or otherwise providing explicit consent to engage with the Company. The Referral Partner shall not use alternative methods to bypass this process or directly submit User information to the Company. All User data submitted through the Onboarding Link shall be the exclusive property of the Company.

4.2. The Referral Partner may decide on the digital channels used to promote the Onboarding Link, provided that such channels do not include phone calls or other direct telephonic communications. The Referral Partner shall refer only Users with whom it has a legitimate, pre-existing business relationship and shall not engage in unsolicited telephone solicitation, cold calling, or other practices that may trigger telemarketing regulations. Any direct telephonic communication for the purpose of promoting the Services requires explicit prior written authorization from the Company.

4.3. The Referral Partner shall not promote, discuss, or otherwise solicit the Services during telephone calls made to Users in connection with the Referral Partner's own services (e.g., credit repair).

4.4. The Referral Partner may only promote the Services during calls related to its own services if:

- Explicit written authorization is provided by the Company, and

- The User's explicit consent is obtained prior to any promotion.

4.5. The Referral Partner is prohibited from pre-filling or manipulating onboarding processes on behalf of the Users.

4.6. The Referral Partner acknowledges that the Company does not offer credit repair or credit extension services and agrees not to represent the Services as such.

4.7. The Referral Partner shall not request or receive payment from Users on behalf of the Company. All payments for the Services shall be processed directly by the Company through its designated payment channels.

4.8. The Referral Partner shall not misrepresent, directly or indirectly, any material aspect of the Services, including but not limited to:

- The nature of the Services;
- The terms of the Company's fees;
- The timeline for processing and payout; and
- Any guarantees regarding the success or outcome of the Services.

The Referral Partner shall not make false or misleading statements to Users regarding the Services or its relationship with the Referral Partner.

4.9. All marketing and promotional materials used by the Referral Partner must be pre-approved by the Company. The Referral Partner shall not provide any written or oral statements regarding the terms, conditions, or nature of the Services without prior written approval.

5. CONSIDERATION

5.1. As consideration for the Referral Partner's services under this Agreement, the Company shall pay the Referral Partner commissions for each Referred User based on the tier selected in Schedule A:

(a) **Commission Tier Selection:** The Referral Partner shall receive commission compensation in accordance with the tier selected in Schedule A. Such commission shall be calculated as a percentage of the Company's fee earned on the Referred User's first transaction, based on the attributed volume associated with that User and the tier selected.

(b) **Custom Commission Agreement:** If the Referral Partner qualifies for the Custom Tier (T0) as described in Schedule A, or if the Company and the Referral Partner mutually agree to enter into a custom commission structure, the Parties shall negotiate a custom percentage commission. Any such custom commission shall apply to Referred User transactions in accordance with the terms agreed upon by the Parties and reflected in Schedule A.

5.2. Payment Terms:

- (a) **Calculation Period:** Commission payments shall be calculated on a monthly basis.
- (b) **Payment Date:** Commissions earned shall be paid by the 15th of each subsequent month.
- (c) **Payment Method:** Payments shall be made via ACH to the account designated by the Referral Partner in Schedule A of the agreement.

5.3. The Company shall provide the Referral Partner with a detailed commission report each month, outlining the transaction volumes and corresponding commission amounts earned.

5.4. Any disputes regarding commission calculations or payments must be submitted by the Referral Partner in writing within thirty (30) days of receipt of the commission report. The Company shall review and resolve such disputes in good faith within a reasonable timeframe.

5.5. Chargebacks and Offset Rights:

(a) **Chargeback Implications for Referral Partner Commission:** In the event that a User initiates a chargeback with respect to a transaction involving the Company, and such chargeback is not due to the Company's gross negligence or intentional misconduct, the Referral Partner shall not be entitled to any commission associated with the affected transaction. If the commission has already been paid to the Referral Partner, the Referral Partner shall return the full amount of the commission to the Company within five (5) business days of receiving written notice of the chargeback from the Company.

(b) **Offset Rights:** The Company retains the right to offset any amounts owed by the Referral Partner to the Company from any Referral Fees due to the Referral Partner. This includes, but is not limited to: (i) Any commissions related to transactions subject to chargebacks, whether resolved or unresolved; (ii) Any revenue paid to the Referral Partner that remains uncollected from the User; (iii) Any losses incurred by the Company due to the Referral Partner's wrongful or negligent acts; and (iv) Any amounts for which the Referral Partner has an indemnification obligation under this Agreement. The Company may exercise its right to offset without prior written notice to the Referral Partner, regardless of whether the Referral Partner's obligations to the Company are currently due and payable.

(c) **Additional Recovery Rights:** The Company reserves the right to pursue additional recovery measures, including legal proceedings, to recover any unpaid amounts resulting from chargebacks or other breaches of this Agreement by the Referral Partner.

6. REPRESENTATIONS AND WARRANTIES

Each Party represents, warrants, and covenants the following to and for the benefit of the other Party for the duration of this Agreement and for as long as either Party remains entitled to any compensation or benefits under this Agreement:

6.1. Each Party operates as an independently established business, aimed at maintaining and developing revenue-generating user relationships. If the Referral Partner is an individual operating as a sole proprietor, they must have filed the required certificate of assumed business name and provide a copy to the Company upon request. If the Referral Partner is a corporation or other legally incorporated entity, it must comply with all relevant corporate filing requirements and provide evidence of incorporation upon request.

6.2. The Referral Partner, if an individual, must be above the age of twenty-one (21) and legally competent to enter into this Agreement. If the Referral Partner is a corporation or legally formed entity, it must be validly existing and in good standing under the laws of its jurisdiction.

6.3. Each Party affirms that it has the full authority and legal capacity to enter into this Agreement and perform its obligations as outlined herein.

6.4. Neither Party shall sell, purchase, disclose, or exchange User information, including credit card, debit card, or bank account numbers, whether to each other or to a third party, without the User's explicit written consent. All such information shall remain the exclusive property of the Party who originally collected it.

6.5. The performance of this Agreement by either Party shall not violate any applicable laws, regulations, or agreements to which it is bound.

6.6. This Agreement constitutes a valid and binding obligation of both Parties, enforceable according to its terms.

6.7. Each Party agrees to comply with all obligations under this Agreement, including all applicable data security and privacy laws.

6.8. Neither Party, nor its principals, officers, or directors, is involved in any litigation or regulatory actions that would adversely impact its ability to perform under this Agreement.

6.9. Neither Party has been convicted of crimes involving dishonesty or fraud. Each Party represents that all prior dishonest or illegal activities, if any, have been fully disclosed to the other Party prior to entering this Agreement.

7. INDEMNIFICATION

7.1. The Referral Partner shall indemnify, defend, and hold harmless the Company, its affiliates, officers, directors, employees, and agents from and against any and all claims, damages, losses, liabilities, costs, and expenses (including reasonable attorneys' fees) arising out of or related to:

- (a) The Referral Partner's gross negligence, willful misconduct, or material breach of this Agreement that results in harm to the Company;
- (b) The Referral Partner's non-compliance with applicable laws, including telemarketing, privacy, and consumer protection, or anti-money laundering laws;
- (c) Any intentional misrepresentation, unauthorized action, or deceptive or fraudulent activities conducted by the Referral Partner in connection with the promotion or referral of Users to the Services.

7.2. This indemnification obligation shall survive the termination or expiration of this Agreement.

8. INDEPENDENT CONTRACTOR RELATIONSHIP

8.1. The Referral Partner and the Company expressly acknowledge and agree that their relationship under this Agreement is that of independent contractors. Nothing in this Agreement shall be construed to create or imply any form of partnership, joint venture, agency, employment, franchise, or common enterprise between the Parties.

8.2. The Referral Partner is solely responsible for the operation and management of its own business, including but not limited to:

- (a) Developing and executing its own marketing strategies independently of the Company;
- (b) Managing and compensating its employees, agents, or contractors, if any;
- (c) Maintaining its own business bank accounts and ensuring there is no commingling of funds with the Company; and
- (d) Utilizing its own resources, tools, and infrastructure to carry out referral activities.

8.3. The Referral Partner's relationship with the Company is strictly limited to referring potential Users to the Services as described in this Agreement. The Referral Partner shall not:

- (a) Represent itself as an agent, representative, or employee of the Company;
- (b) Bind or obligate the Company in any way; or
- (c) Engage in any activities that would create an appearance of a unified marketing strategy or common enterprise with the Company.

8.4. The Parties shall maintain complete independence in their operations, finances, employees, and other resources. There shall be no:

- (a) Commingling of funds between the Referral Partner and the Company;

- (b) Sharing of employees, office space, or other resources; or
- (c) Collaboration on marketing or other business strategies beyond the Referral Partner's limited role as described in this Agreement.

8.5. Both Parties acknowledge and agree that they operate as separate and independent businesses, fully responsible for their respective compliance with applicable laws and regulations and neither has the right to control the other.

9. TERM AND TERMINATION

9.1. This Agreement begins on the Effective Date and, unless terminated earlier in accordance with this Section, will automatically renew for successive one (1) year terms unless either Party provides written notice of non-renewal at least thirty (30) days before the expiration of the then-current term.

9.2. Either Party may terminate this Agreement immediately upon written notice if the other Party:

- (a) Breaches any material term or condition of this Agreement and fails to cure such breach within thirty (30) days of receiving written notice of the breach, or
- (b) Becomes insolvent, makes an assignment for the benefit of creditors, or files for bankruptcy.

9.3. Either Party may terminate this Agreement for any reason or no reason by providing the other Party with at least thirty (30) days' prior written notice.

9.4. Upon termination or expiration of this Agreement, the Referral Partner shall:

- (a) Cease using the Onboarding Link and any materials provided by the Company.
- (b) Remove all links to the Company's website from their digital channels.
- (c) Return or destroy any Confidential Information (as defined in Section 10.1) of the Company in their possession or control.

9.5. Termination of this Agreement will not affect any provisions that by their nature are intended to survive termination, including but not limited to Sections 10 (Confidentiality), 7 (Indemnification), and 11 (Disclaimer of Warranty and Limitation of Liability).

10. CONFIDENTIALITY

10.1. "Confidential Information" refers to any proprietary or non-public information disclosed by one Party ("**Disclosing Party**") to the other Party ("**Receiving Party**"), including but not limited to business processes, technical data, customer information, and financial information, that:

- (a) Is marked or identified as "confidential" or "proprietary" at the time of disclosure, or
- (b) A reasonable person would understand to be confidential given its nature and the circumstances of its disclosure.

For the avoidance of doubt, all User information shall be presumed to be confidential and shall be treated as such by both Parties, regardless of whether it is expressly marked as "confidential" or "proprietary." Both Parties agree to use such information solely for purposes permitted under this Agreement and to take all reasonable measures to protect its confidentiality in accordance with the terms herein.

10.2. Confidential Information does not include information that:

- (a) Becomes publicly available without breach of this Agreement;
- (b) Was lawfully in the Receiving Party's possession prior to disclosure;

(c) Is disclosed by a third party without breach of confidentiality obligations; or (d) Is independently developed without reliance on the Disclosing Party's Confidential Information.

10.3. The Receiving Party agrees to:

- (a) Use Confidential Information solely for purposes of performing its obligations or exercising its rights under this Agreement;
- (b) Protect the Confidential Information with the same degree of care it uses to protect its own confidential information, but in no event less than a reasonable standard of care; and
- (c) Limit access to Confidential Information to employees, agents, or subcontractors who have a need to know and are bound by confidentiality obligations at least as restrictive as those in this Agreement.

10.4. If required by law or legal process, the Receiving Party may disclose Confidential Information provided that the Receiving Party shall make reasonable efforts to notify the Disclosing Party promptly upon becoming aware of any requirement for such disclosure to allow the Disclosing Party to seek a protective order or other appropriate remedy.

11. DISCLAIMER OF WARRANTY AND LIMITATION OF LIABILITY

11.1. THE COMPANY PROVIDES ITS SERVICES "AS IS" AND MAKES NO WARRANTIES, EXPRESS OR IMPLIED, TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW. THIS INCLUDES, WITHOUT LIMITATION, ANY IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, NON-INFRINGEMENT, OR ARISING FROM A COURSE OF DEALING, USAGE, OR TRADE PRACTICE. THE COMPANY DOES NOT WARRANT THAT ITS SERVICES WILL BE ERROR-FREE, UNINTERRUPTED, OR MEET THE USER'S SPECIFIC NEEDS OR REQUIREMENTS.

11.2. EXCEPT FOR INDEMNIFICATION OBLIGATIONS UNDER SECTION 7 OR A BREACH OF CONFIDENTIALITY OBLIGATIONS UNDER SECTION 10, NEITHER PARTY SHALL BE LIABLE TO THE OTHER FOR ANY INDIRECT, INCIDENTAL, CONSEQUENTIAL, EXEMPLARY, PUNITIVE, OR SPECIAL DAMAGES, INCLUDING BUT NOT LIMITED TO LOSS OF PROFITS, REVENUE, DATA, OR BUSINESS OPPORTUNITIES, ARISING OUT OF OR RELATING TO THIS AGREEMENT, WHETHER FORESEEABLE OR UNFORESEEABLE, AND REGARDLESS OF THE THEORY OF LIABILITY (INCLUDING BREACH OF CONTRACT, WARRANTY, OR NEGLIGENCE), EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

11.3. EXCEPT FOR INDEMNIFICATION OBLIGATIONS UNDER SECTION 7 OR A BREACH OF CONFIDENTIALITY OBLIGATIONS UNDER SECTION 10, THE TOTAL CUMULATIVE LIABILITY OF EITHER PARTY TO THE OTHER FOR ALL CLAIMS ARISING OUT OF OR RELATING TO THIS AGREEMENT SHALL NOT EXCEED THE TOTAL AMOUNT OF COMMISSIONS PAID OR PAYABLE TO THE REFERRAL PARTNER UNDER THIS AGREEMENT DURING THE TWELVE (12) MONTHS PRECEDING THE EVENT GIVING RISE TO THE CLAIM.

11.4. THE LIMITATIONS OF LIABILITY SET FORTH IN THIS SECTION REFLECT THE ALLOCATION OF RISK BETWEEN THE PARTIES AND ARE AN ESSENTIAL ELEMENT OF THE CONSIDERATION THAT ENABLED THE PARTIES TO ENTER INTO THIS AGREEMENT, INCLUDING THE COMMISSION STRUCTURE.

12. GENERAL PROVISIONS

12.1. The Referral Partner may not assign this Agreement or any of its rights or obligations hereunder without the prior written consent of the Company. Any attempt to assign this Agreement without such consent shall be null and void. In the event of a sale, merger, or other transfer of the Referral Partner's

business or rights under this Agreement without the Company's consent, the Company reserves the right to terminate this Agreement immediately. This Agreement shall bind and insure to the benefit of the successors and permitted assigns of the Parties.

12.2. All notices or other communications required or permitted under this Agreement shall be in writing and delivered by hand, sent via regular or certified mail with return receipt requested, dispatched through a nationally recognized express delivery service to the addresses specified in the description of the Parties, or sent via email to the addresses listed on the signature page or subsequently provided by a Party. Notices shall be deemed effective upon actual receipt by the intended recipient.

12.3. This Agreement constitutes the entire agreement between the Parties, superseding all prior agreements, understandings, representations, and communications, whether written or oral, regarding the subject matter herein. No other representations, warranties, or commitments exist outside of those expressly provided in this Agreement.

12.4. No provision of this Agreement may be amended, modified, or waived except by a written agreement signed by both Parties. If any provision of this Agreement is found by a court of competent jurisdiction to be invalid, unlawful, or otherwise unenforceable, that provision shall be severed, and the remaining provisions shall remain in full force and effect.

12.5. This Agreement shall be governed by and construed in accordance with the laws of the Commonwealth of Massachusetts, without regard to its conflicts of law principles. Any legal actions or proceedings arising from or related to this Agreement shall be instituted in a court of competent jurisdiction located in the Commonwealth of Massachusetts, in the county where the Company's principal place of business is located.

12.6. THE PARTIES HEREBY IRREVOCABLY WAIVE ANY AND ALL RIGHTS TO A JURY TRIAL OF ANY CLAIM OR CAUSE OF ACTION ARISING OUT OF OR RELATING TO THIS AGREEMENT. THIS WAIVER SHALL APPLY TO ANY AMENDMENTS, RENEWALS, OR MODIFICATIONS OF THIS AGREEMENT. THIS PROVISION MAY BE FILED AS A WRITTEN CONSENT TO A BENCH TRIAL IN ANY LITIGATION ARISING UNDER THIS AGREEMENT.

12.7. Except as expressly provided herein, the remedies available under this Agreement are cumulative and not exclusive of any other remedy at law, in equity, or otherwise. The election of one or more remedies shall not preclude the pursuit of other remedies.

12.8. In the event of any dispute or litigation arising from this Agreement, the prevailing Party shall be entitled to recover its reasonable attorney's fees, costs, and expenses. If the Company incurs legal fees to enforce this Agreement or recover any amounts owed by the Referral Partner, such fees may be deducted from any amounts payable to the Referral Partner.

12.9. This Agreement may be executed in counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument. Electronic signatures, including scanned copies, shall be treated as originals for all purposes of this Agreement.

12.10. Each Party represents that it has had the opportunity to seek independent legal advice prior to executing this Agreement. The Agreement shall not be construed in favor of or against any Party based on its drafting.

Page left intentionally blank

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

Company: 
By: _____
Name: Grey Friend
Title: CEO
E-mail: Affiliates@kashupay.com

Referral Partner: *Abel Jesus, Fernandez*
By: _____
Name: SourcifyLending
Title: Founder
E-mail: abel@sourcifylending.com

Page left intentionally blank

SCHEDULE A**COMMISSION STRUCTURE**

This Schedule A (“Schedule”) is attached to and incorporated into the Referral Partner Agreement between Kashu Inc. (“Company”) and the Referral Partner. All commission payments are subject to the terms of the Agreement.

Commission Tier Structure

The Referral Partner shall participate in the following commission tier, as selected below.

Tier Structure	Choice	Percentage Compensation
T2	☒	5% of our fee on a user’s first transaction (0-100k in lifetime attributed volume).
T1	☐	10% of our fee on a user’s first transaction (>100k in lifetime attributed volume)
T0	☐	Custom % of our fee on a user’s transaction, or whitelabel funnel.

Custom Commission Percentage (T0 Only)

If the Referral Partner is approved for Tier T0 or the Parties mutually agree to a custom commission structure under Section 5.1(b), the agreed-upon percentage must be entered below:

Custom Commission Percentage:**Standard Payment Terms****2.1 Payment Timing**

Commissions are paid monthly, by the 15th of the following month.

2.2 Payment Method

All commission payouts will be sent via ACH using the Referral Partner’s information listed in Schedule B.

Page left intentionally blank

SCHEDULE B

ACH COMMISSION PAYOUT INFORMATION

This Schedule B ("Schedule") is attached to and incorporated into the Referral Partner Agreement between Kashu Inc. ("Company") and the Referral Partner identified below. The information provided in this Schedule will be used solely for the purpose of issuing commission payments pursuant to the Agreement.

Referral Partner Information

Referral Partner Name: Abel Fernandez
Business Name (if applicable): Vidalyfe LLC dba SourcifyLending
Address: 3826 sw 79th ave miami fl 33155
Email: abel@sourcifylending.com
Phone: 3057613308

ACH Payout Banking Information

Account Holder Name: Vidalyfe LLC - TD Bank
Account Type:
☒ Checking
☐ Savings
Routing Number (ACH): 067014822
Account Number: 4376426734

Authorization

By signing below, Referral Partner authorizes Kashu Inc. to initiate ACH credit entries to the bank account listed above for commissions payable under the Referral Partner Agreement. Referral Partner certifies that all information provided in this Schedule is accurate.

Referral Partner also agrees to promptly notify the Company in writing of any changes to the information provided herein. The Company is not responsible for delays or failed payments resulting from inaccurate or outdated information.

Referral Partner Signature: Abel Jesus Fernandez
Printed Name: Abel Fernandez
Title (if applicable): founder
Date: 2026-04-24

CERTIFICATE *of* SIGNATURE

REF. NUMBER
4MCXY-NYVEF-VVZSI-AGKVC

DOCUMENT COMPLETED BY ALL PARTIES ON
24 APR 2026 14:46:47
UTC

SIGNER

ABEL JESUS,FERNANDEZ

EMAIL
ABELF305@GMAIL.COM

SHARED VIA
LINK

TIMESTAMP

SENT
23 APR 2026 21:43:25

VIEWED
23 APR 2026 22:10:31

SIGNED
24 APR 2026 14:46:47

SIGNATURE

Abel Jesus, Fernandez

IP ADDRESS
71.57.163.252

LOCATION
MIAMI, UNITED STATES



**Request for Taxpayer
Identification Number and Certification**

Go to www.irs.gov/FormW9 for instructions and the latest information.

**Give form to the
requester. Do not
send to the IRS.**

Before you begin. For guidance related to the purpose of Form W-9, see *Purpose of Form*, below.

Print or type. See Specific Instructions on page 3.	1 Name of entity/individual. An entry is required. (For a sole proprietor or disregarded entity, enter the owner's name on line 1, and enter the business/disregarded entity's name on line 2.) Vidalyfe llc dba SourcifyLending	
	2 Business name/disregarded entity name, if different from above.	
	3a Check the appropriate box for federal tax classification of the entity/individual whose name is entered on line 1. Check only one of the following seven boxes. ☐ Individual/sole proprietor ☐ C corporation ☐ S corporation ☐ Partnership ☐ Trust/estate ☐ LLC. Enter the tax classification (C = C corporation, S = S corporation, P = Partnership) _____ Note: Check the "LLC" box above and, in the entry space, enter the appropriate code (C, S, or P) for the tax classification of the LLC, unless it is a disregarded entity. A disregarded entity should instead check the appropriate box for the tax classification of its owner. ☐ Other (see instructions) _____	4 Exemptions (codes apply only to certain entities, not individuals; see instructions on page 3): Exempt payee code (if any) _____ Exemption from Foreign Account Tax Compliance Act (FATCA) reporting code (if any) _____ (Applies to accounts maintained outside the United States.)
	3b If on line 3a you checked "Partnership" or "Trust/estate," or checked "LLC" and entered "P" as its tax classification, and you are providing this form to a partnership, trust, or estate in which you have an ownership interest, check this box if you have any foreign partners, owners, or beneficiaries. See instructions _____ ☐	
	5 Address (number, street, and apt. or suite no.). See instructions. 3826 sw 79th ave apt 135	Requester's name and address (optional)
6 City, state, and ZIP code miami fl 33155		
7 List account number(s) here (optional)		

Part I Taxpayer Identification Number (TIN)

Enter your TIN in the appropriate box. The TIN provided must match the name given on line 1 to avoid backup withholding. For individuals, this is generally your social security number (SSN). However, for a resident alien, sole proprietor, or disregarded entity, see the instructions for Part I, later. For other entities, it is your employer identification number (EIN). If you do not have a number, see *How to get a TIN*, later.

Note: If the account is in more than one name, see the instructions for line 1. See also *What Name and Number To Give the Requester* for guidelines on whose number to enter.

Social security number									
			-				-		
or									
Employer identification number									
8	4	-	3	9	9	5	9	9	3

Part II Certification

Under penalties of perjury, I certify that:

- The number shown on this form is my correct taxpayer identification number (or I am waiting for a number to be issued to me); and
- I am not subject to backup withholding because (a) I am exempt from backup withholding, or (b) I have not been notified by the Internal Revenue Service (IRS) that I am subject to backup withholding as a result of a failure to report all interest or dividends, or (c) the IRS has notified me that I am no longer subject to backup withholding; and
- I am a U.S. citizen or other U.S. person (defined below); and
- The FATCA code(s) entered on this form (if any) indicating that I am exempt from FATCA reporting is correct.

Certification instructions. You must cross out item 2 above if you have been notified by the IRS that you are currently subject to backup withholding because you have failed to report all interest and dividends on your tax return. For real estate transactions, item 2 does not apply. For mortgage interest paid, acquisition or abandonment of secured property, cancellation of debt, contributions to an individual retirement arrangement (IRA), and, generally, payments other than interest and dividends, you are not required to sign the certification, but you must provide your correct TIN. See the instructions for Part II, later.

Sign Here	Signature of U.S. person	Date
------------------	--------------------------	------

General Instructions

Section references are to the Internal Revenue Code unless otherwise noted.

Future developments. For the latest information about developments related to Form W-9 and its instructions, such as legislation enacted after they were published, go to www.irs.gov/FormW9.

What's New

Line 3a has been modified to clarify how a disregarded entity completes this line. An LLC that is a disregarded entity should check the appropriate box for the tax classification of its owner. Otherwise, it should check the "LLC" box and enter its appropriate tax classification.

New line 3b has been added to this form. A flow-through entity is required to complete this line to indicate that it has direct or indirect foreign partners, owners, or beneficiaries when it provides the Form W-9 to another flow-through entity in which it has an ownership interest. This change is intended to provide a flow-through entity with information regarding the status of its indirect foreign partners, owners, or beneficiaries, so that it can satisfy any applicable reporting requirements. For example, a partnership that has any indirect foreign partners may be required to complete Schedules K-2 and K-3. See the Partnership Instructions for Schedules K-2 and K-3 (Form 1065).

Purpose of Form

An individual or entity (Form W-9 requester) who is required to file an information return with the IRS is giving you this form because they

must obtain your correct taxpayer identification number (TIN), which may be your social security number (SSN), individual taxpayer identification number (ITIN), adoption taxpayer identification number (ATIN), or employer identification number (EIN), to report on an information return the amount paid to you, or other amount reportable on an information return. Examples of information returns include, but are not limited to, the following.

- Form 1099-INT (interest earned or paid).
- Form 1099-DIV (dividends, including those from stocks or mutual funds).
- Form 1099-MISC (various types of income, prizes, awards, or gross proceeds).
- Form 1099-NEC (nonemployee compensation).
- Form 1099-B (stock or mutual fund sales and certain other transactions by brokers).
- Form 1099-S (proceeds from real estate transactions).
- Form 1099-K (merchant card and third-party network transactions).
- Form 1098 (home mortgage interest), 1098-E (student loan interest), and 1098-T (tuition).
- Form 1099-C (canceled debt).
- Form 1099-A (acquisition or abandonment of secured property).

Use Form W-9 only if you are a U.S. person (including a resident alien), to provide your correct TIN.

Caution: If you don't return Form W-9 to the requester with a TIN, you might be subject to backup withholding. See *What is backup withholding*, later.

By signing the filled-out form, you:

1. Certify that the TIN you are giving is correct (or you are waiting for a number to be issued);
2. Certify that you are not subject to backup withholding; or
3. Claim exemption from backup withholding if you are a U.S. exempt payee; and
4. Certify to your non-foreign status for purposes of withholding under chapter 3 or 4 of the Code (if applicable); and
5. Certify that FATCA code(s) entered on this form (if any) indicating that you are exempt from the FATCA reporting is correct. See *What Is FATCA Reporting*, later, for further information.

Note: If you are a U.S. person and a requester gives you a form other than Form W-9 to request your TIN, you must use the requester's form if it is substantially similar to this Form W-9.

Definition of a U.S. person. For federal tax purposes, you are considered a U.S. person if you are:

- An individual who is a U.S. citizen or U.S. resident alien;
- A partnership, corporation, company, or association created or organized in the United States or under the laws of the United States;
- An estate (other than a foreign estate); or
- A domestic trust (as defined in Regulations section 301.7701-7).

Establishing U.S. status for purposes of chapter 3 and chapter 4 withholding. Payments made to foreign persons, including certain distributions, allocations of income, or transfers of sales proceeds, may be subject to withholding under chapter 3 or chapter 4 of the Code (sections 1441–1474). Under those rules, if a Form W-9 or other certification of non-foreign status has not been received, a withholding agent, transferee, or partnership (payor) generally applies presumption rules that may require the payor to withhold applicable tax from the recipient, owner, transferor, or partner (payee). See Pub. 515, *Withholding of Tax on Nonresident Aliens and Foreign Entities*.

The following persons must provide Form W-9 to the payor for purposes of establishing its non-foreign status.

- In the case of a disregarded entity with a U.S. owner, the U.S. owner of the disregarded entity and not the disregarded entity.
- In the case of a grantor trust with a U.S. grantor or other U.S. owner, generally, the U.S. grantor or other U.S. owner of the grantor trust and not the grantor trust.
- In the case of a U.S. trust (other than a grantor trust), the U.S. trust and not the beneficiaries of the trust.

See Pub. 515 for more information on providing a Form W-9 or a certification of non-foreign status to avoid withholding.

Foreign person. If you are a foreign person or the U.S. branch of a foreign bank that has elected to be treated as a U.S. person (under Regulations section 1.1441-1(b)(2)(iv) or other applicable section for chapter 3 or 4 purposes), do not use Form W-9. Instead, use the appropriate Form W-8 or Form 8233 (see Pub. 515). If you are a qualified foreign pension fund under Regulations section 1.897(l)-1(d), or a partnership that is wholly owned by qualified foreign pension funds, that is treated as a non-foreign person for purposes of section 1445 withholding, do not use Form W-9. Instead, use Form W-8EXP (or other certification of non-foreign status).

Nonresident alien who becomes a resident alien. Generally, only a nonresident alien individual may use the terms of a tax treaty to reduce or eliminate U.S. tax on certain types of income. However, most tax treaties contain a provision known as a saving clause. Exceptions specified in the saving clause may permit an exemption from tax to continue for certain types of income even after the payee has otherwise become a U.S. resident alien for tax purposes.

If you are a U.S. resident alien who is relying on an exception contained in the saving clause of a tax treaty to claim an exemption from U.S. tax on certain types of income, you must attach a statement to Form W-9 that specifies the following five items.

1. The treaty country. Generally, this must be the same treaty under which you claimed exemption from tax as a nonresident alien.
2. The treaty article addressing the income.
3. The article number (or location) in the tax treaty that contains the saving clause and its exceptions.
4. The type and amount of income that qualifies for the exemption from tax.
5. Sufficient facts to justify the exemption from tax under the terms of the treaty article.

Example. Article 20 of the U.S.-China income tax treaty allows an exemption from tax for scholarship income received by a Chinese student temporarily present in the United States. Under U.S. law, this student will become a resident alien for tax purposes if their stay in the United States exceeds 5 calendar years. However, paragraph 2 of the first Protocol to the U.S.-China treaty (dated April 30, 1984) allows the provisions of Article 20 to continue to apply even after the Chinese student becomes a resident alien of the United States. A Chinese student who qualifies for this exception (under paragraph 2 of the first Protocol) and is relying on this exception to claim an exemption from tax on their scholarship or fellowship income would attach to Form W-9 a statement that includes the information described above to support that exemption.

If you are a nonresident alien or a foreign entity, give the requester the appropriate completed Form W-8 or Form 8233.

Backup Withholding

What is backup withholding? Persons making certain payments to you must under certain conditions withhold and pay to the IRS 24% of such payments. This is called “backup withholding.” Payments that may be subject to backup withholding include, but are not limited to, interest, tax-exempt interest, dividends, broker and barter exchange transactions, rents, royalties, nonemployee pay, payments made in settlement of payment card and third-party network transactions, and certain payments from fishing boat operators. Real estate transactions are not subject to backup withholding.

You will not be subject to backup withholding on payments you receive if you give the requester your correct TIN, make the proper certifications, and report all your taxable interest and dividends on your tax return.

Payments you receive will be subject to backup withholding if:

1. You do not furnish your TIN to the requester;
2. You do not certify your TIN when required (see the instructions for Part II for details);
3. The IRS tells the requester that you furnished an incorrect TIN;
4. The IRS tells you that you are subject to backup withholding because you did not report all your interest and dividends on your tax return (for reportable interest and dividends only); or
5. You do not certify to the requester that you are not subject to backup withholding, as described in item 4 under “*By signing the filled-out form*” above (for reportable interest and dividend accounts opened after 1983 only).

Certain payees and payments are exempt from backup withholding. See *Exempt payee code*, later, and the separate Instructions for the Requester of Form W-9 for more information.

See also *Establishing U.S. status for purposes of chapter 3 and chapter 4 withholding*, earlier.

What Is FATCA Reporting?

The Foreign Account Tax Compliance Act (FATCA) requires a participating foreign financial institution to report all U.S. account holders that are specified U.S. persons. Certain payees are exempt from FATCA reporting. See *Exemption from FATCA reporting code*, later, and the Instructions for the Requester of Form W-9 for more information.

Updating Your Information

You must provide updated information to any person to whom you claimed to be an exempt payee if you are no longer an exempt payee and anticipate receiving reportable payments in the future from this person. For example, you may need to provide updated information if you are a C corporation that elects to be an S corporation, or if you are no longer tax exempt. In addition, you must furnish a new Form W-9 if the name or TIN changes for the account, for example, if the grantor of a grantor trust dies.

Penalties

Failure to furnish TIN. If you fail to furnish your correct TIN to a requester, you are subject to a penalty of \$50 for each such failure unless your failure is due to reasonable cause and not to willful neglect.

Civil penalty for false information with respect to withholding. If you make a false statement with no reasonable basis that results in no backup withholding, you are subject to a \$500 penalty.

Criminal penalty for falsifying information. Willfully falsifying certifications or affirmations may subject you to criminal penalties including fines and/or imprisonment.

Misuse of TINs. If the requester discloses or uses TINs in violation of federal law, the requester may be subject to civil and criminal penalties.

Specific Instructions

Line 1

You must enter one of the following on this line; **do not** leave this line blank. The name should match the name on your tax return.

If this Form W-9 is for a joint account (other than an account maintained by a foreign financial institution (FFI)), list first, and then circle, the name of the person or entity whose number you entered in Part I of Form W-9. If you are providing Form W-9 to an FFI to document a joint account, each holder of the account that is a U.S. person must provide a Form W-9.

• **Individual.** Generally, enter the name shown on your tax return. If you have changed your last name without informing the Social Security Administration (SSA) of the name change, enter your first name, the last name as shown on your social security card, and your new last name.

Note for ITIN applicant: Enter your individual name as it was entered on your Form W-7 application, line 1a. This should also be the same as the name you entered on the Form 1040 you filed with your application.

• **Sole proprietor.** Enter your individual name as shown on your Form 1040 on line 1. Enter your business, trade, or “doing business as” (DBA) name on line 2.

• **Partnership, C corporation, S corporation, or LLC, other than a disregarded entity.** Enter the entity’s name as shown on the entity’s tax return on line 1 and any business, trade, or DBA name on line 2.

• **Other entities.** Enter your name as shown on required U.S. federal tax documents on line 1. This name should match the name shown on the charter or other legal document creating the entity. Enter any business, trade, or DBA name on line 2.

• **Disregarded entity.** In general, a business entity that has a single owner, including an LLC, and is not a corporation, is disregarded as an entity separate from its owner (a disregarded entity). See Regulations section 301.7701-2(c)(2). A disregarded entity should check the appropriate box for the tax classification of its owner. Enter the owner’s name on line 1. The name of the owner entered on line 1 should never be a disregarded entity. The name on line 1 should be the name shown on the income tax return on which the income should be reported. For

example, if a foreign LLC that is treated as a disregarded entity for U.S. federal tax purposes has a single owner that is a U.S. person, the U.S. owner’s name is required to be provided on line 1. If the direct owner of the entity is also a disregarded entity, enter the first owner that is not disregarded for federal tax purposes. Enter the disregarded entity’s name on line 2. If the owner of the disregarded entity is a foreign person, the owner must complete an appropriate Form W-8 instead of a Form W-9. This is the case even if the foreign person has a U.S. TIN.

Line 2

If you have a business name, trade name, DBA name, or disregarded entity name, enter it on line 2.

Line 3a

Check the appropriate box on line 3a for the U.S. federal tax classification of the person whose name is entered on line 1. Check only one box on line 3a.

IF the entity/individual on line 1 is a(n) . . .	THEN check the box for . . .
• Corporation	Corporation.
• Individual or	Individual/sole proprietor.
• Sole proprietorship	
• LLC classified as a partnership for U.S. federal tax purposes or	Limited liability company and enter the appropriate tax classification:
• LLC that has filed Form 8832 or 2553 electing to be taxed as a corporation	P = Partnership, C = C corporation, or S = S corporation.
• Partnership	Partnership.
• Trust/estate	Trust/estate.

Line 3b

Check this box if you are a partnership (including an LLC classified as a partnership for U.S. federal tax purposes), trust, or estate that has any foreign partners, owners, or beneficiaries, and you are providing this form to a partnership, trust, or estate, in which you have an ownership interest. You must check the box on line 3b if you receive a Form W-8 (or documentary evidence) from any partner, owner, or beneficiary establishing foreign status or if you receive a Form W-9 from any partner, owner, or beneficiary that has checked the box on line 3b.

Note: A partnership that provides a Form W-9 and checks box 3b may be required to complete Schedules K-2 and K-3 (Form 1065). For more information, see the Partnership Instructions for Schedules K-2 and K-3 (Form 1065).

If you are required to complete line 3b but fail to do so, you may not receive the information necessary to file a correct information return with the IRS or furnish a correct payee statement to your partners or beneficiaries. See, for example, sections 6698, 6722, and 6724 for penalties that may apply.

Line 4 Exemptions

If you are exempt from backup withholding and/or FATCA reporting, enter in the appropriate space on line 4 any code(s) that may apply to you.

Exempt payee code.

- Generally, individuals (including sole proprietors) are not exempt from backup withholding.
- Except as provided below, corporations are exempt from backup withholding for certain payments, including interest and dividends.
- Corporations are not exempt from backup withholding for payments made in settlement of payment card or third-party network transactions.
- Corporations are not exempt from backup withholding with respect to attorneys’ fees or gross proceeds paid to attorneys, and corporations that provide medical or health care services are not exempt with respect to payments reportable on Form 1099-MISC.

The following codes identify payees that are exempt from backup withholding. Enter the appropriate code in the space on line 4.

1—An organization exempt from tax under section 501(a), any IRA, or a custodial account under section 403(b)(7) if the account satisfies the requirements of section 401(f)(2).

- 2—The United States or any of its agencies or instrumentalities.
- 3—A state, the District of Columbia, a U.S. commonwealth or territory, or any of their political subdivisions or instrumentalities.
- 4—A foreign government or any of its political subdivisions, agencies, or instrumentalities.
- 5—A corporation.
- 6—A dealer in securities or commodities required to register in the United States, the District of Columbia, or a U.S. commonwealth or territory.
- 7—A futures commission merchant registered with the Commodity Futures Trading Commission.
- 8—A real estate investment trust.
- 9—An entity registered at all times during the tax year under the Investment Company Act of 1940.
- 10—A common trust fund operated by a bank under section 584(a).
- 11—A financial institution as defined under section 581.
- 12—A middleman known in the investment community as a nominee or custodian.
- 13—A trust exempt from tax under section 664 or described in section 4947.

The following chart shows types of payments that may be exempt from backup withholding. The chart applies to the exempt payees listed above, 1 through 13.

IF the payment is for . . .	THEN the payment is exempt for . . .
• Interest and dividend payments	All exempt payees except for 7.
• Broker transactions	Exempt payees 1 through 4 and 6 through 11 and all C corporations. S corporations must not enter an exempt payee code because they are exempt only for sales of noncovered securities acquired prior to 2012.
• Barter exchange transactions and patronage dividends	Exempt payees 1 through 4.
• Payments over \$600 required to be reported and direct sales over \$5,000 ¹	Generally, exempt payees 1 through 5. ²
• Payments made in settlement of payment card or third-party network transactions	Exempt payees 1 through 4.

¹ See Form 1099-MISC, Miscellaneous Information, and its instructions.

² However, the following payments made to a corporation and reportable on Form 1099-MISC are not exempt from backup withholding: medical and health care payments, attorneys' fees, gross proceeds paid to an attorney reportable under section 6045(f), and payments for services paid by a federal executive agency.

Exemption from FATCA reporting code. The following codes identify payees that are exempt from reporting under FATCA. These codes apply to persons submitting this form for accounts maintained outside of the United States by certain foreign financial institutions. Therefore, if you are only submitting this form for an account you hold in the United States, you may leave this field blank. Consult with the person requesting this form if you are uncertain if the financial institution is subject to these requirements. A requester may indicate that a code is not required by providing you with a Form W-9 with "Not Applicable" (or any similar indication) entered on the line for a FATCA exemption code.

A—An organization exempt from tax under section 501(a) or any individual retirement plan as defined in section 7701(a)(37).

B—The United States or any of its agencies or instrumentalities.

C—A state, the District of Columbia, a U.S. commonwealth or territory, or any of their political subdivisions or instrumentalities.

D—A corporation the stock of which is regularly traded on one or more established securities markets, as described in Regulations section 1.1472-1(c)(1)(i).

E—A corporation that is a member of the same expanded affiliated group as a corporation described in Regulations section 1.1472-1(c)(1)(i).

F—A dealer in securities, commodities, or derivative financial instruments (including notional principal contracts, futures, forwards, and options) that is registered as such under the laws of the United States or any state.

G—A real estate investment trust.

H—A regulated investment company as defined in section 851 or an entity registered at all times during the tax year under the Investment Company Act of 1940.

I—A common trust fund as defined in section 584(a).

J—A bank as defined in section 581.

K—A broker.

L—A trust exempt from tax under section 664 or described in section 4947(a)(1).

M—A tax-exempt trust under a section 403(b) plan or section 457(g) plan.

Note: You may wish to consult with the financial institution requesting this form to determine whether the FATCA code and/or exempt payee code should be completed.

Line 5

Enter your address (number, street, and apartment or suite number). This is where the requester of this Form W-9 will mail your information returns. If this address differs from the one the requester already has on file, enter "NEW" at the top. If a new address is provided, there is still a chance the old address will be used until the payor changes your address in their records.

Line 6

Enter your city, state, and ZIP code.

Part I. Taxpayer Identification Number (TIN)

Enter your TIN in the appropriate box. If you are a resident alien and you do not have, and are not eligible to get, an SSN, your TIN is your IRS ITIN. Enter it in the entry space for the Social security number. If you do not have an ITIN, see *How to get a TIN* below.

If you are a sole proprietor and you have an EIN, you may enter either your SSN or EIN.

If you are a single-member LLC that is disregarded as an entity separate from its owner, enter the owner's SSN (or EIN, if the owner has one). If the LLC is classified as a corporation or partnership, enter the entity's EIN.

Note: See *What Name and Number To Give the Requester*, later, for further clarification of name and TIN combinations.

How to get a TIN. If you do not have a TIN, apply for one immediately. To apply for an SSN, get Form SS-5, Application for a Social Security Card, from your local SSA office or get this form online at www.SSA.gov. You may also get this form by calling 800-772-1213. Use Form W-7, Application for IRS Individual Taxpayer Identification Number, to apply for an ITIN, or Form SS-4, Application for Employer Identification Number, to apply for an EIN. You can apply for an EIN online by accessing the IRS website at www.irs.gov/EIN. Go to www.irs.gov/Forms to view, download, or print Form W-7 and/or Form SS-4. Or, you can go to www.irs.gov/OrderForms to place an order and have Form W-7 and/or Form SS-4 mailed to you within 15 business days.

If you are asked to complete Form W-9 but do not have a TIN, apply for a TIN and enter "Applied For" in the space for the TIN, sign and date the form, and give it to the requester. For interest and dividend payments, and certain payments made with respect to readily tradable instruments, you will generally have 60 days to get a TIN and give it to the requester before you are subject to backup withholding on payments. The 60-day rule does not apply to other types of payments. You will be subject to backup withholding on all such payments until you provide your TIN to the requester.

Note: Entering "Applied For" means that you have already applied for a TIN or that you intend to apply for one soon. See also *Establishing U.S. status for purposes of chapter 3 and chapter 4 withholding*, earlier, for when you may instead be subject to withholding under chapter 3 or 4 of the Code.

Caution: A disregarded U.S. entity that has a foreign owner must use the appropriate Form W-8.

Part II. Certification

To establish to the withholding agent that you are a U.S. person, or resident alien, sign Form W-9. You may be requested to sign by the withholding agent even if item 1, 4, or 5 below indicates otherwise.

For a joint account, only the person whose TIN is shown in Part I should sign (when required). In the case of a disregarded entity, the person identified on line 1 must sign. Exempt payees, see *Exempt payee code*, earlier.

Signature requirements. Complete the certification as indicated in items 1 through 5 below.

1. Interest, dividend, and barter exchange accounts opened before 1984 and broker accounts considered active during 1983. You must give your correct TIN, but you do not have to sign the certification.

2. Interest, dividend, broker, and barter exchange accounts opened after 1983 and broker accounts considered inactive during 1983. You must sign the certification or backup withholding will apply. If you are subject to backup withholding and you are merely providing your correct TIN to the requester, you must cross out item 2 in the certification before signing the form.

3. Real estate transactions. You must sign the certification. You may cross out item 2 of the certification.

4. Other payments. You must give your correct TIN, but you do not have to sign the certification unless you have been notified that you have previously given an incorrect TIN. "Other payments" include payments made in the course of the requester's trade or business for rents, royalties, goods (other than bills for merchandise), medical and health care services (including payments to corporations), payments to a nonemployee for services, payments made in settlement of payment card and third-party network transactions, payments to certain fishing boat crew members and fishermen, and gross proceeds paid to attorneys (including payments to corporations).

5. Mortgage interest paid by you, acquisition or abandonment of secured property, cancellation of debt, qualified tuition program payments (under section 529), ABLE accounts (under section 529A), IRA, Coverdell ESA, Archer MSA or HSA contributions or distributions, and pension distributions. You must give your correct TIN, but you do not have to sign the certification.

What Name and Number To Give the Requester

For this type of account:	Give name and SSN of:
1. Individual	The individual
2. Two or more individuals (joint account) other than an account maintained by an FFI	The actual owner of the account or, if combined funds, the first individual on the account ¹
3. Two or more U.S. persons (joint account maintained by an FFI)	Each holder of the account
4. Custodial account of a minor (Uniform Gift to Minors Act)	The minor ²
5. a. The usual revocable savings trust (grantor is also trustee)	The grantor-trustee ¹
b. So-called trust account that is not a legal or valid trust under state law	The actual owner ¹
6. Sole proprietorship or disregarded entity owned by an individual	The owner ³
7. Grantor trust filing under Optional Filing Method 1 (see Regulations section 1.671-4(b)(2)(i)(A))**	The grantor*

For this type of account:	Give name and EIN of:
8. Disregarded entity not owned by an individual	The owner
9. A valid trust, estate, or pension trust	Legal entity ⁴
10. Corporation or LLC electing corporate status on Form 8832 or Form 2553	The corporation
11. Association, club, religious, charitable, educational, or other tax-exempt organization	The organization
12. Partnership or multi-member LLC	The partnership
13. A broker or registered nominee	The broker or nominee
14. Account with the Department of Agriculture in the name of a public entity (such as a state or local government, school district, or prison) that receives agricultural program payments	The public entity
15. Grantor trust filing Form 1041 or under the Optional Filing Method 2, requiring Form 1099 (see Regulations section 1.671-4(b)(2)(i)(B))**	The trust

¹ List first and circle the name of the person whose number you furnish. If only one person on a joint account has an SSN, that person's number must be furnished.

² Circle the minor's name and furnish the minor's SSN.

³ You must show your individual name on line 1, and enter your business or DBA name, if any, on line 2. You may use either your SSN or EIN (if you have one), but the IRS encourages you to use your SSN.

⁴ List first and circle the name of the trust, estate, or pension trust. (Do not furnish the TIN of the personal representative or trustee unless the legal entity itself is not designated in the account title.)

* **Note:** The grantor must also provide a Form W-9 to the trustee of the trust.

** For more information on optional filing methods for grantor trusts, see the Instructions for Form 1041.

Note: If no name is circled when more than one name is listed, the number will be considered to be that of the first name listed.

Secure Your Tax Records From Identity Theft

Identity theft occurs when someone uses your personal information, such as your name, SSN, or other identifying information, without your permission to commit fraud or other crimes. An identity thief may use your SSN to get a job or may file a tax return using your SSN to receive a refund.

To reduce your risk:

- Protect your SSN,
- Ensure your employer is protecting your SSN, and
- Be careful when choosing a tax return preparer.

If your tax records are affected by identity theft and you receive a notice from the IRS, respond right away to the name and phone number printed on the IRS notice or letter.

If your tax records are not currently affected by identity theft but you think you are at risk due to a lost or stolen purse or wallet, questionable credit card activity, or a questionable credit report, contact the IRS Identity Theft Hotline at 800-908-4490 or submit Form 14039.

For more information, see Pub. 5027, Identity Theft Information for Taxpayers.

Victims of identity theft who are experiencing economic harm or a systemic problem, or are seeking help in resolving tax problems that have not been resolved through normal channels, may be eligible for Taxpayer Advocate Service (TAS) assistance. You can reach TAS by calling the TAS toll-free case intake line at 877-777-4778 or TTY/TDD 800-829-4059.

Protect yourself from suspicious emails or phishing schemes.

Phishing is the creation and use of email and websites designed to mimic legitimate business emails and websites. The most common act is sending an email to a user falsely claiming to be an established legitimate enterprise in an attempt to scam the user into surrendering private information that will be used for identity theft.

The IRS does not initiate contacts with taxpayers via emails. Also, the IRS does not request personal detailed information through email or ask taxpayers for the PIN numbers, passwords, or similar secret access information for their credit card, bank, or other financial accounts.

If you receive an unsolicited email claiming to be from the IRS, forward this message to phishing@irs.gov. You may also report misuse of the IRS name, logo, or other IRS property to the Treasury Inspector General for Tax Administration (TIGTA) at 800-366-4484. You can forward suspicious emails to the Federal Trade Commission at spam@uce.gov or report them at www.ftc.gov/complaint. You can contact the FTC at www.ftc.gov/idtheft or 877-IDTHEFT (877-438-4338). If you have been the victim of identity theft, see www.IdentityTheft.gov and Pub. 5027.

Go to www.irs.gov/IdentityTheft to learn more about identity theft and how to reduce your risk.

Privacy Act Notice

Section 6109 of the Internal Revenue Code requires you to provide your correct TIN to persons (including federal agencies) who are required to file information returns with the IRS to report interest, dividends, or certain other income paid to you; mortgage interest you paid; the acquisition or abandonment of secured property; the cancellation of debt; or contributions you made to an IRA, Archer MSA, or HSA. The person collecting this form uses the information on the form to file information returns with the IRS, reporting the above information. Routine uses of this information include giving it to the Department of Justice for civil and criminal litigation and to cities, states, the District of Columbia, and U.S. commonwealths and territories for use in administering their laws. The information may also be disclosed to other countries under a treaty, to federal and state agencies to enforce civil and criminal laws, or to federal law enforcement and intelligence agencies to combat terrorism. You must provide your TIN whether or not you are required to file a tax return. Under section 3406, payors must generally withhold a percentage of taxable interest, dividends, and certain other payments to a payee who does not give a TIN to the payor. Certain penalties may also apply for providing false or fraudulent information.